

25PSCV03140 25PSCV03140

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-29

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Case Number: 25PSCV03140 Hearing Date: July 29, 2026 Dept: H

Lopez Medina v. Pomona

Fox Theater, LLC, et al.,

Case No. 25PSCV03140

(Related to Case No. 26PSCV01234)

ORDER ON MOTION

FOR DETERMINATION OF GOOD FAITH SETTLEMENT

Defendants Pomona Fox Theater, LLC, Pomona Fox Theater Manager, LLC, Pomona Fox Theater Master Tenant, LLC, Pomona Fox Concessions, LLC, Arteco Partners, Gerald Victor Tessier, Edward Tessier, and Alejandra Magaly Tessier's Motion for Judicial Determination of Good Faith Settlement is GRANTED. Plaintiff, Joseph Gus Lopez Medina's joinder is summarily DENIED as untimely.

Background

Case

No. 25PSCV03140

Plaintiff

Joseph Gus Lopez Medina ("Lopez Medina") alleges that on April 27, 2025 he sustained injuries and damages after falling from a staircase at the Fox Theater Pomona.

On

August 29, 2025, Lopez Medina filed a complaint, asserting causes of action

against Pomona Fox Theater, LLC, Pomona Fox Theater Manager, LLC, Pomona Fox Theater Master Tenant, LLC, Pomona Fox Concessions, LLC (hereinafter collectively, "Fox Theater Defendants"), Arteco Partners, Gerald Victor Tessier, Edward Tessier, Alejandra Magaly Tessier (hereinafter, the "Tessier Defendants") and Does 1-100 for: (1) Premises Liability and (2) Negligence Per Se.

On

April 1, 2026, Plaintiff filed an "Amendment to Complaint," wherein All American Security Solutions, Inc. ("All American") was named in lieu of Doe 1.

On

April 28, 2026, the Court related Case Nos. 25PSCV03140 and 26PSCV01234 and designated Case No. 25PSCV03140 as the lead case.

On May

5, 2026, Plaintiff filed another "Amendment to Complaint," wherein Orlando Rocha ("Rocha") was named in lieu of Doe 2.

A Case

Management Conference is set for August 25, 2026.

Case

No. 26PSCV01234

Lopez

Medina alleges that on April 27, 2025 he sustained injuries and damages after falling from a staircase at the Fox Theater Pomona ("Venue").

On

April 3, 2026, Plaintiff filed a complaint, asserting a cause of action against City of Pomona and Does 1-100 for: (1) Dangerous Condition of Public Property Under Government Code § 835.

On June

22, 2026, Plaintiff dismissed his complaint, without prejudice.

Legal

Standard

“Any

party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligators, upon giving notice in the manner provided in subdivision (b) of Section 1005 . . .” (Code Civ. Proc., § 877.6, subd. (a)(1).)

“A

determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).)

“[T]he

intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial.

Other

relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. Finally, practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement.” (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499 [emphasis added].)

Additionally, “the trial court’s good faith determination must take into account the settling tortfeasor’s potential liability for indemnity to a cotortfeasor, as well as the settling tortfeasor’s potential liability to the plaintiff.” (Far West Financial Corp. v. D&S Co. (1988) 46 Cal.3d 796, 816, fn. 16.) “If section 877.6 is to serve the ends of justice, it must prevent a party from purchasing protection from its indemnification obligation at bargain-basement prices.” (Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 876.)

The

moving party's initial evidentiary burden depends on whether the good faith of the settlement is being contested. If the nonsettling defendants do not oppose the motion on the good faith issue, a "barebones" motion which sets forth the grounds of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.)

When a

motion for determination of good faith settlement is contested, however, the moving party must make a more specific showing under the Tech-Bilt factors. (*Id.* at 1261-62.) Such a showing may be made either in the original moving papers or in counter-declarations filed after the nonsettling defendants have filed an opposition challenging good faith of the settlement. (*Id.* at 1262.) Where good faith is contested, the showing requires competent evidence in support of "good faith." (*Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 834.)

"Once

there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the non-settlor who asserts that the settlement was not made in good faith." (*City of Grand Terrace, supra*, 192 Cal.App.3d at 1262; Code Civ. Proc., § 877.6, subd. (d).)

Discussion

The Fox

Theater Defendants, Arteco Partners and the Tessier Defendants (hereinafter, "Settling Defendants") move the Court, pursuant to Code of Civil Procedure sections 877 and 877.6, for an order determining that the settlement entered into between Lopez Medina and Settling Defendants constitutes a good faith settlement and barring and/or dismissing any and all past, present, and/or future claims any other joint tortfeasor or co-obligor, including All American, Rocha and any other party Lopez Medina may file suit against for the injuries claimed in this suit for equitable contribution, implied indemnity, partial or comparative indemnity or fault based upon comparative negligence or comparative fault arising out of the circumstances which are the subject matter of this action.

At the

outset, the Court summarily denies Lopez Medina's joinder filed July 22, 2026 as untimely.

Lopez

Medina and Settling Defendants have agreed to resolve Lopez Medina's claims for Settling Defendants' policy limits in exchange for a dismissal with prejudice.

Settling Defendants represent that the amount of the settlement is confidential, pursuant to the terms of the "Settlement Agreement and Release" attached as Exhibit C to the Declaration of Vicki Greco ("Greco"); that said, the settlement amount is readily ascertainable based on Settling Defendants' response to Form Interrogatories, Set No. One, No. 4.1, attached as Exhibit B to the Greco Declaration, as well as on the following information: Lopez Medina made a policy limits demand (Greco Decl., ¶ 11); Settling Defendants are named insureds under one commercial liability policy (Id., ¶ 12); there is only one policy that affords coverage to Settling Defendants for the claims asserted by Lopez Medina in this case (Id.); Settling Defendants' carrier "wrote and informed [Lopez Medina] that the carrier would accept [Lopez Medina's] demand and tender the entire insurance policy" (Id., ¶ 14); and "Defendants, by and through their carrier, agreed to tender entire policy limits" (Id., ¶ 17).

On August 29, 2025, Lopez Medina

filed a complaint against Settling Defendants and Does 1-100 for Premises Liability and Negligence Per Se. (Greco Decl., ¶ 5.) Lopez Medina alleged that Defendants breached their duty of care to him by failing to maintain the Venue, including but not limited to the staircase, in compliance with applicable building codes; maintaining the handrail that ran alongside the staircase in at an unreasonably low, and unreasonably dangerous, height; failing to maintain an intermediate handrail down the staircase; stopping the second floor guardrail, which runs alongside the second floor handrail, at the top of the staircase, and not extending that guardrail so that it ran alongside the handrail for the length of the staircase; failing to provide security guards, attendants or other personnel to monitor, warn and/or otherwise assist persons attending the event in descending the staircase safely; failing to provide security guards, attendants or other personnel to monitor, warn, recognize and/or otherwise assist persons attending the event who were intoxicated in exiting the Venue; and failing to provide reasonable warnings to persons using the staircase of the dangers posed by the unreasonably low handrail. (Complaint, ¶ 17.) On April 1, 2026, Lopez Medina named All American in lieu of Doe 1; on May 5, 2026,

Lopez Medina named Rocha in lieu of Doe 2. (Greco Decl., ¶¶ 8 and 10.)

Settling Defendants' counsel

Vicki Greco ("Greco") represents, and/or the accompanying exhibits reflect, as follows:

This

matter arises from an incident that occurred on the evening of April 27, 2025, at the Venue. (Id., ¶ 3.) Lopez Medina attended a house-music event, which took place on a rooftop area accessible through the second floor of the Venue. (Id.) At the conclusion of the event, Plaintiff and his friends returned to the second floor and proceeded toward a curved staircase connecting the second floor to the first-floor lobby area presumably for the purpose of exiting the Venue. (Id.) The second floor of the Venue overlooks the first-floor lobby. (Id., ¶ 4.) A guardrail extending along the edge of the second floor terminates at the top of the staircase, where the handrail continues along the interior side of the staircase from the second floor down to the lobby. (Id.) There is no intermediate handrail along the staircase. Plaintiff had consumed alcohol at the event and was intoxicated at the time of the Incident. (Id.) As Plaintiff approached the staircase from the second floor, he sat upon the banister of the curved staircase and began to slide down the banister when he lost his balance and fell several feet backwards, down to the ground below, and sustained significant personal injuries. (Id., ¶ 5.)

Greco

has attached a copy of Lopez's Medina's counsel's January 20, 2026 correspondence "Re: Time-Limited Demand to Settle Within Policy Limits," which, in addition to providing a link to video footage of the accident, sets forth and provides evidentiary support for Lopez Medina's injuries and treatment, as well as his past medical expenses of \$496,281.42. (Id., ¶ 11, Exh. A.)

Settling

Defendants posit that the facts leave room for the possibility that Settling Defendants could prevail on grounds that Lopez Medina acted unreasonably and caused the accident by his actions. (Motion, 8:1-3.) Greco confirms that none of the Settling Defendants has the means to contribute any additional funds to compromise Lopez Medina's claims and that the settlement agreement was reached after months of good faith and arms-length negotiations by and between counsel. (Id., ¶¶ 13, 14, and 16.)

The

Court determines that Settling Defendants have made an adequate showing of the settlement; as such, the burden of proof on the issue of lack of good faith shifted to All American. All American, in turn, complains that there was no disclosure of the settlement disclosure which, as set forth above, is inaccurate. All American has failed to provide the Court with any declarations, expert opinion, competing fault allocation, damages analysis, and/or evidence of collusion. All American requests that the Court continue the hearing to permit limited discovery concerning the settlement, the Settling Defendants' comparative liability, and the factual basis supporting the motion. A good faith determination, however, requires a "rough approximation" of plaintiff's total recovery and City's proportionate share on the basis of information available at the time of settlement. (Tech-Bilt, *supra*, 38 Cal.3d at 499). Settling Defendant points out that All American has had access to the same facts as the settling parties, including the complaint, the surveillance video, Settling Defendants verified discovery responses confirming the single policy and its limits, and the known severity of Lopez Medina's injuries. The Court denies All American's request for a continuance.

The

motion is granted.